

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
RADIK MURDAKHAYEV,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER
MICHAEL NICOSIA, POLICE OFFICER
JOHN DOE,Defendants.
-----X**SUMMONS**

Index No.:

Plaintiff Designates Queens County
As the Place of Trial

Basis of Venue: Place of Occurrence

To the above-names Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Defendants' addresses:

City of New York
100 Church Street
New York, NY 10007Police Officer Michael Nicosia
NYPD 107th Precinct
71-01 Parsons Blvd.
Fresh Meadows, NY 11365Dated: New York, New York
June 24, 2024Cody Warner, P.C.
Counsel for Plaintiff
11 Broadway
Suite 615
New York, NY 10004
212-627-3184By: Cody Warner
CODY WARNER, ESQ

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X	
RADIK MURDAKHAYEV,	:
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Plaintiff,	:
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-against-	:
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CITY OF NEW YORK, POLICE OFFICER	:
MICHAEL NICOSIA, POLICE OFFICER	:
JOHN DOE,	:
	:
Defendants.	:
	:
-----X	

VERIFIED COMPLAINT

Index No.:

To the above-names Defendants:

Plaintiff, RADIK MURDAKHAYEV, by his attorney, CODY WARNER, alleges as follows:

PRELIMINARY STATEMENT

1. This action arises from the Defendants' arrest of Radik Murdakhayev ("Plaintiff") on or about the early hours of November 27, 2023. Plaintiff asserts the constitutional claim of excessive force pursuant to 42 U.S.C. § 1983 and related claims under New York state law. Plaintiff seeks compensatory and punitive damages, costs, disbursements, and attorney's fees pursuant to applicable state law.

VENUE AND JURISDICTION

2. Venue is proper in Queens County Supreme Court pursuant to CPLR § 503 because the acts complained of herein occurred in Queens County, New York, and Plaintiff suffered damages that exceed the jurisdictional amount of all lower courts of the State of New York.

JURY DEMAND

3. Plaintiff respectfully demands a trial by jury of all issues in this matter.

NOTICE OF CLAIM

4. Plaintiff filed a timely notice of claim on February 22, 2024. A GML 50-h hearing was conducted on April 30, 2024.

PARTIES

5. Plaintiff is a forty-year-old man who resides in Queens County, New York.

6. Defendant Police Officer Michael Nicosia (“Defendant Nicosia”) was at the time of the incident an officer, employee, and agent of the New York City Police Department (“NYPD”), which is an agent of Defendant City.

7. Defendant Nicosia is sued in his individual and official capacities. At all times mentioned herein, Defendant Nicosia acted under the color of state law, in the capacity of an officer, employee, and agent of Defendant City.

8. Defendant Police Officer John Doe (“Defendant Doe”) was at the time of the incident an officer, employee, and agent of the New York City Police Department (“NYPD”), which is an agent of Defendant City.

9. Defendant Doe is sued in his individual and official capacities. At all times mentioned herein, Defendant Doe acted under the color of state law, in the capacity of an officer, employee, and agent of Defendant City.

10. Defendant City is a municipality created and authorized under the laws of New York State. It is authorized to maintain, direct, and to supervise the NYPD, which acts as its law enforcement agent and for which it is ultimately responsible.

STATEMENT OF FACTS

11. On November 26, 2023, Plaintiff and his wife were involved in a non-physical domestic dispute at 144-22 70th Avenue in Queens County, New York (“Incident Location”).

12. Plaintiff's wife called 911, and NYPD officers, including Defendant Nicosia and Defendant Doe, arrived at the Incident Location.

13. Defendant Nicosia arrested Plaintiff by aggressively and forcefully grabbing Plaintiff's wrist and squeezing them behind Plaintiff's back.

14. Plaintiff did not resist arrest or engage in any way that justified Defendant Nicosia's use of excessive force when handcuffing Plaintiff.

15. Defendant Nicosia then instructed Plaintiff to put on his shoes.

16. Plaintiff, whose hands were handcuffed behind his back, asked Defendant Nicosia to uncuff him so that he could put on his shoes. Defendant Nicosia refused to uncuff Plaintiff.

17. When Plaintiff attempted to put on his shoes while his hands were behind his back, Defendant Nicosia grabbed Plaintiff's hands and pushed downward, which caused excruciating pain to Plaintiff's hips and back.

18. Plaintiff pleaded with Defendant Nicosia to stop pushing his hands down, but Defendant Nicosia did not oblige.

19. While Defendant Nicosia pushed Plaintiff's hands down, Defendant Doe told Plaintiff that he hoped Plaintiff didn't have stinky feet, and then he aggressively put Plaintiff's shoes on Plaintiff's feet, which caused Plaintiff to suffer more pain to his hip.

20. While at the Incident Location, Plaintiff told Defendant Nicosia and Defendant Doe that his hands were hurting because the handcuffs were too tight on his wrists. Neither defendant loosened Plaintiff's handcuffs.

21. Defendant Nicosia and Defendant Doe escorted Plaintiff to their patrol car, and they aggressively threw Plaintiff inside their patrol car, which caused Plaintiff to land on—and

hyperextend—the fourth finger on his right hand and to again twist his hip, which caused excruciating pain.

22. Once inside the patrol car, Plaintiff again asked for his cuffs to be loosened because he was in pain. Defendant Nicosia and Defendant Doe ignored his pleas.

23. Plaintiff asked Defendant Nicosia and Defendant Doe for medical attention at the Incident Location, inside the patrol car, and at the precinct. Each time, Defendant Nicosia and Defendant Doe ignored Plaintiff's pleas.

24. After Plaintiff was released from police custody, he took ibuprofen in effort to deal with the pain caused by Defendant Nicosia and Defendant Doe.

25. Several months after the incident, Plaintiff still felt excruciating pain and loss of mobility in his right leg, hip, and hand. Plaintiff went to an orthopedic surgeon for a medical evaluation.

26. On March 11, 2024, Plaintiff was diagnosed with mild fourth finger flexor tenosynovitis.

27. On March 22, 2024, Plaintiff was diagnosed with a partial tear of his anterior superior acetabular labrum.

28. Plaintiff has received injections of steroids and pain medication in his hip and hand to reduce pain and increase mobility.

29. Plaintiff currently attends occupational therapy sessions twice a week to address the mobility issues in his hand.

30. Plaintiff currently attends physical therapy sessions twice a week to address the mobility issues in his hip.

31. Plaintiff lost wages because of his repeated medical appointments, and he suffers ongoing emotional distress from the incident and aftermath.

CAUSES OF ACTION

First Claim

Excessive Force Under 42 U.S.C. Section 1983

32. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if fully stated herein.

33. By the actions described, Defendant Nicosia and Defendant Doe deprived Plaintiff of his Fourth Amendment right to be free of unreasonable or unwarranted restraints on personal liberty, specifically his right to be free from excessive and unreasonable force.

Second Claim

Assault Under New York State Law

34. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if fully stated herein.

35. By the actions described, Defendant Nicosia and Defendant Doe placed Plaintiff in apprehension of imminent and harmful offensive bodily contact.

36. Defendant City, as employer of Defendant Nicosia and Defendant Doe, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

37. As a direct a proximate result of the aforementioned conduct, Plaintiff sustained the damages and injuries hereinbefore alleged.

Third Claim**Battery Under N.Y. State Law**

38. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if fully stated herein.

39. As detailed above, Defendant Nicosia and Defendant Doe intentionally touched Plaintiff in an offensive and harmful manner, and they intentionally subjected him to offensive and harmful contact.

40. Defendant City, as employer of Defendant Nicosia and Defendant Doe, is responsible for the wrongdoing under the doctrine of *respondeat superior*.

41. As a direct a proximate result of the aforementioned conduct, Plaintiff sustained the damages and injuries hereinbefore alleged.

Fourth Claim**Intentional Infliction of Emotional Distress**

42. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully therein.

43. By the actions described above, Defendant Nicosia and Defendant Doe engaged in extreme and outrageous conduct that intentionally caused severe emotional distress to Plaintiff.

44. Defendant City, as employer of Defendant Nicosia and Defendant Doe, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

45. As a direct a proximate result of the aforementioned conduct, Plaintiff sustained the damages and injuries hereinbefore alleged.

Fifth Claim**Negligence**

46. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully therein.

47. By the actions described above, Defendant Nicosia and Defendant Doe breached their duty of care by causing injury to Plaintiff when they arrested and transported him.

48. Defendant City, as employer of Defendant Nicosia and Defendant Doe, is responsible for the wrongdoing under the doctrine of *respondeat superior*.

49. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

Sixth Claim**Negligent Screening, Hiring, and Retention Under New York State Law**

50. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully therein.

51. Defendant City owed a duty of care to Plaintiff to adequately hire, retain, and supervise its employees Defendant Nicosia and Defendant Doe.

52. Defendant City breached that duty of care.

53. Defendant City placed Defendant Nicosia and Defendant Doe in positions where they could inflict foreseeable harm.

54. Defendant City knew or should have known Defendants' propensities to engage in the unlawful conduct heretofore alleged in this Complaint.

55. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests the following relief jointly and severally against the Defendants:

- a. An order awarding compensatory damages for Plaintiff in an amount to be determined by a jury;
- b. An order awarding punitive damages in an amount to be determined by a jury;
- c. Reasonable attorney's fees and the costs and disbursements of this action; and
- d. Such other and further relief as this Court may deem appropriate.

DATED: New York, New York
June 24, 2024

Cody Warner, P.C.
Counsel for Plaintiff
11 Broadway
Suite 615
New York, NY 10004
212-627-3184

By: Cody Warner
Cody Warner, Esq.

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK) ss:

I, **CODY WARNER**, an attorney admitted to practice in the courts of New York State, affirm that I am the principal attorney of the firm **CODY WARNER, P.C.**, counsel of record for Plaintiff in the within action. I have read the foregoing and know the contents thereof. The same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. The reason this verification is made by me and not by Petitioner is because Petitioner resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: June 24, 2024
New York, NY

Cody Warner
Cody Warner, Esq.
Attorney for Plaintiff

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SUMMONS AND VERIFIED COMPLAINT

CODY WARNER, P.C.

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